

Plaintiff was “done at the behest of an officer, director, and/or managing agent.” (¶ 11, 17, 19.) There are additional general allegations that the actions taken were “authorized, ratified, and carried out by officers, directors, and/or managing agents of Defendants....” (See e.g. ¶¶ 22, 27, 32, 38.)

There are no **facts**, however, that describe any of these people, what their responsibilities were, or supporting the claim that they had ‘substantial authority over decisions that ultimately determine corporate policy.’ Here, Plaintiff merely copies the wording of section 3294 without providing any factual allegations to support the contention that the people were officers, directors, and/or managing agents of Defendant.

The mere allegation that an officer, director, or managing agent was aware of the conduct is not sufficient to allege punitive damages. “Pleading in the language of the statute is acceptable **provided that sufficient facts are pleaded to support the allegations**. [Citation omitted.] The terms themselves are conclusory, however. [Emphasis added.]” (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Plaintiff fails to allege any facts regarding the person(s) who acted as managing agent(s) on behalf of Defendant, as well as any facts regarding whether said agent(s) acted with the requisite knowledge and in the requisite manner to support Defendant’s liability for punitive damages as a corporate employer. There are no allegations showing that any person of sufficient authority had any knowledge of the incidents outlined in the FAC. Plaintiff’s allegation that an ‘officer, director, and/or managing agent’ ‘authorized, ratified, or carried out’ the actions complaint of – without any additional **factual** allegations that would allow Defendants to determine who potentially opened it up to a claim for punitive damages is insufficient.

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient. (See e.g. *Smith v. Sup. Ct.* (1992) 10 Cal. App. 4th 1033, 1042.)

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer [or motion to strike] that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

Plaintiff has already been given leave to amend once. This time around, Plaintiff does not explain how he can amend to address the deficiencies. Instead, in his Opposition he merely states: “Plaintiff respectfully requests that Plaintiff be granted leave to amend.” Leave to amend is denied.

Conclusion

Defendant’s motion to strike is **granted** without leave to amend. If during discovery Plaintiff uncovers additional facts which would support a claim for punitive damages against Defendant corporation, Plaintiff may seek leave to amend at that time.

15. 9:00 AM CASE NUMBER: C25-03107
CASE NAME: RENE MACHADO VS. VALUE PLUMBING CO.
COMPLAINT
FILED BY: VALUE PLUMBING CO.
TENTATIVE RULING:

Summary

Before the Court is a demurrer by defendants to the complaint. For the reasons set forth, the demurrer is **overruled**.

Background

Plaintiffs Rene Chavez Machado and Vincente Chavez are putative class plaintiffs in the class action complaint alleging wage and hour violations against defendant Value Plumbing Co. and three of its alleged officers, directors or managing agents, defendants Lisa A. Mullins, Gary A. Mullins, and Todd Mullins. The complaint alleges various wage and hour violations of the Labor Code and a cause of action for violation of the Unfair Competition Law, Business & Professions Code section 17200 *et seq.* ("UCL").

Defendants have filed a demurrer to the complaint in its entirety as a general demurrer for failure to allege facts sufficient to state a cause of action and for uncertainty. (Not. of Dem. p. 3, ll. 4-7.) Plaintiffs oppose the demurrer.

Failure of Demurring Party to Comply with Statutory Meet and Confer (Code Civ. Proc. § 430.41(a))

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the deadline for filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) A meet and confer through the exchange of letters or emails does not satisfy the meet and confer requirements of Code of Civil Procedure section 430.41.

Defendants have filed a declaration by their counsel Savage in which she addresses an exchange of emails she had with counsel for Plaintiffs on February 20, 2026. She does not declare that she made any attempt to meet and confer with counsel for Plaintiffs by telephone, videoconference, or in person prior to filing the demurrer. Ordinarily, the Court would continue the hearing for the parties to meet and confer, but the Court exercises its discretion under the circumstances to address the merits of the demurrer.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute

of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Merits Declarations Filed in Support of and in Opposition to the Demurrer

Defendants filed a declaration of Terri Goularte in support of the demurrer. The declarant asserts she is the office manager of defendant Value Plumbing Co., and she provides substantive evidence in the form of a payroll record and a pay stub for Machado and Chavez, respectively. The Court does not consider evidence in ruling on a demurrer, except matters subject to judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The contents of the Goularte declaration and the exhibits are not properly considered in ruling on a demurrer, and the Court has disregarded them.

In support of the opposition, Plaintiffs also filed a declaration of their counsel Davies which in part addresses the merits of the action apparently to respond to Goularte's evidence that the Plaintiffs purportedly were no longer employed by Value Plumbing as of sometime in 2021, among things, with Davies attaching copies of the Plaintiffs' declarations filed in the related class action to support a class certification motion. (Davies Decl. ¶ 9 and Exhs. B and C.) For the same reasons stated above, the Court disregards this evidence in ruling on the demurrer. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian, supra*, 116 Cal.App.4th at 994.)

Analysis

A. Statute of Limitations

Defendants assert that Plaintiffs' employment ended with Value Plumbing in 2021, based on the evidence submitted with the Goularte Declaration which the Court does not consider. They contend that the claims are barred by the statute of limitations and that the complaint alleges claims "outside the scope of employment." (MPA p. 4, ll. 10-15.)

Defendants contends that PAGA claims have a one-year statute of limitations under Code of Civil Procedure section 340(a) as such claims are a "penalty" for failure to comply with the Labor Code. (MPA p. 4, ll. 15-17.) (*But see* MPA p. 5, ll. 19-26 [asserting there is an 18-month limitations period].) Plaintiffs' complaint does not allege a PAGA cause of action. Defendants do not point to any allegations in the complaint which show on the face of the complaint that the Labor Code causes of action and the UCL claim are "clearly and affirmatively" barred by the applicable statute of limitations, nor do they cite any authority that the one-year statute of limitations of Code of Civil Procedure section 340(a) applies to any of the causes of action actually asserted in the complaint.

Plaintiffs' first eight causes of action allege violations of the Labor Code and a right to recover for those violations under multiple Labor Code statutes and the applicable Industrial Wage Orders. The California Supreme Court has held that the three-year statute of limitations of Code of Civil Procedure section 338(a) applies to wage claims, and that a claim under Labor Code section 226.7 is a wage claim. (*Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1102-1104.) The complaint alleges claims for failure to pay minimum wages in violation of Labor Code sections 1194 and 1197 (1st C/A), failure to pay overtime wages in violation of Labor Code sections 510, 1194, and 1198 (2nd C/A), and failure to provide for meal periods in violation of Labor Code sections 226.7 and 512 (3rd

C/A). All of these claims under the *Murphy* decision are wage claims subject to a three-year statute of limitations. Defendants do not cite any allegations of the complaint that on their face show the claims are "clearly and affirmatively" barred by the three-year statute of limitations based on the date of filing of the complaint on October 22, 2025.

Plaintiffs' ninth cause of action alleges violations of the UCL. The UCL has a four-year statute of limitations as provided in Business & Professions Code section 17208. The statute provides in relevant part, "Any action to enforce any cause of action pursuant to this chapter shall be commenced within four years after the cause of action accrued." The Court cannot determine from the face of the complaint that the claims alleged under the UCL are barred by the four-year statute of limitations when the complaint was filed. The fact that these four causes of action survive Defendants' statute of limitations attack is sufficient to warrant overruling the demurrer because Defendants have only generally demurred to the complaint in its entirety and not to any individual cause of action.

B. Scope of Employment and Individual Labor Code Violations

Defendants also contend that Plaintiffs have alleged "representative claims" that do not allege that Plaintiffs individually experienced the violations, such that "they lack standing to assert claims outside the scope of their own employment." (MPA p. 7, ll. 8-11.) Plaintiffs have not alleged PAGA representative claims.

To the extent Defendants contend that Plaintiffs have not alleged that they have suffered individual wage and hour Labor Code violations, the argument is unsupported by citation to specific allegations of the complaint and belied by the Court's review of the complaint. (See, e.g., Compl. ¶¶ 30 ["In violation of the Labor Code and IWC Wage Orders, Plaintiffs and Class Members were not paid all wages (including minimum wages and overtime wages) for all hours worked at the correct rate and within the correct time."], 31 ["In violation of the Labor Code and IWC Wage Orders, Plaintiff and Class Members did not receive all meal periods or payment of one (1) additional hour of pay at Plaintiff's and Class Members' regular rate of pay when they did not receive a timely, uninterrupted meal period."], 32 ["In violation of the Labor Code and IWC Wage Orders, Plaintiffs and Class Members did not receive all rest breaks or payment of one (1) additional hour of pay at Plaintiffs' and Class Members' regular rate of pay when a rest break was missed, late, or interrupted."], and 33 ["In violation of the Labor Code and IWC Wage Orders, Plaintiffs and Class Members incurred necessary business expenses or losses, but were not reimbursed nor indemnified of such expenses or losses that were incurred as a direct consequence of the discharge of their duties, or of their obedience to the directions of Defendants."].)

The general demurrers to the complaint in its entirety on these grounds are **overruled**.

C. Special Demurrer for Uncertainty

Defendants have also made a special demurrer to the complaint in its entirety for uncertainty. (Dem. p. 3, ll. 3-7.) To the extent Defendants' special demurrer for uncertainty is based on the argument the allegations of the complaint are general, or lacking in specificity (MPA p. 7, ll. 3-5), the argument is not supported by any citations to the allegations Defendants complain about or legal authority that supports that the allegations are inadequate.

The Court can sustain a demurrer for uncertainty if the complaint fails to sufficiently apprise the defendants of the claims against them. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) Because ambiguities can be clarified through discovery, demurrers for uncertainty are generally disfavored. (*Id.*) "[W]here the complaint contains substantive factual

allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citation omitted.]" (*Id.* [quoting *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2].) The allegations cited above and others made in the complaint adequately apprise Defendants of the issues Defendants are being asked to defend.

Defendants have not shown that the complaint as alleged and properly construed as a non-PAGA, non-representative action is uncertain. The special demurrer to the complaint in its entirety for uncertainty is **overruled**.

16. 9:00 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
RELIEF FROM SANCTIONS
FILED BY: WESTBROOK, LYNETTA

TENTATIVE RULING:

This motion is was withdrawn by Plaintiff. No appearance is required at the August 12, 2026 hearing.

17. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
TO BE RELIEVED AS COUNSEL RE: ATTORNEY DEVON M. THURTLAND ANDERSON
FILED BY:

TENTATIVE RULING:

Summary

Counsel Devon Thurtle Andersen ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Cross-Defendant Daniel Jensen ("Motion"). The Motion is **continued** to August 19, 2026 at 9:00 p.m. Withdrawing Counsel is ordered to file and serve a Declaration in support of Motion to Withdraw that is complete.

Background

On May 20, 2026, Withdrawing Counsel filed the following Declaration in Support of Motion to Withdraw as Counsel, which appears to only contain the following statement:

(This Attachment may be used with any Judicial Council form.)

~~9/30/2026 at 9:01 am - Hearing on Motion for Discovery re: Compel Further Responses to Plain Interrogatories and Admissions, Set 2.~~

Nothing else is attached. The Court presumes that this is an administrative filing error and is without information to make a decision on Withdrawing Counsel's Motion.

Ruling

1. This motion is continued to August 19, 2026 at 9:00 a.m.